

general rules governing contracts (Civ. Code, § 1532), which means that in general “an oral novation may extinguish a written agreement.” (*Bush v. Vernon* (1955) 135 Cal.App.2d 33, 37 [286 P.2d 903].)

The Harringtons’ arguments fail. The cross-complaint alleges that the parties agreed to terminate the lease. (Cross-comp. ¶¶9, 10, 15.) The parties have each provided evidence, through their declarations, regarding whether they agreed to terminate the lease early. On prong two of a special motion to strike, the Court accepts the opposing party’s evidence as true. Thus, while there is a dispute of fact here, the Court accepts Naderi’s evidence for the purpose of showing a probability of prevailing on the merits.

Therefore, the Court finds that Naderi has shown a probability of prevailing on her novation – breach of contract claim based upon the Harringtons’ filing this lawsuit and the motion to strike those allegations is denied.

17. 9:00 AM CASE NUMBER: C25-02272
CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL
***HEARING ON MOTION IN RE: FOR OSC RE SALE OF REAL PROPERTY**
FILED BY:
TENTATIVE RULING:

Continued to April 15, 2026. (See January 20, 2026 minute order.)

18. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
HEARING ON PETITION IN RE: PETITION TO ASSIGN CASE NUMBER AND TO SET REASONABLE DEPOSITION FEE
FILED BY: SILVA, JULIANO
TENTATIVE RULING:

This Petition to assign a case number and set a reasonable deposition fee, and the Motion currently scheduled for February 4, 2026 at 9:00 a.m. to Set Reasonable Deposition Fee for Dr. Robert Rovner are **continued**, *sua sponte*, to March 26, 2026 at 9:00 a.m. in Dept. 10 before Hon. Juila Campins. The hearings calendared for January 28, 2026 and February 4, 2026 at 9:00 a.m. are vacated. No appearance is required.

19. 9:00 AM CASE NUMBER: MSC20-02307
CASE NAME: MCNEAL VS LIBERTY MUTUAL GROUP
HEARING ON ORDER TO SHOW CAUSE IN RE:
FILED BY:
TENTATIVE RULING:

The hearing on this matter is **continued** pursuant to a request and Declaration submitted by Plaintiff Linton McNeal to March 18, 2026 at 9:00 a.m. The clerk of the court shall provide notice of continued hearing to Plaintiff Linton McNeal and to Defendant Kurita Jamison Pratt. No appearances are required on January 28, 2026.

20. 9:01 AM CASE NUMBER: C24-03379

CASE NAME: NAGESWARA VELINEDI VS. CAPITAL BENEFIT, INC.

*HEARING ON MOTION FOR DISCOVERY DEEM MATTERS ADMITTED AGAINST PLTF NAGESWARA RAO VELINEDI

FILED BY: CAPITAL BENEFIT, INC.

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 20 and 21. Both matters are Defendant's Motions to Deem Matters Admitted against the Plaintiffs Nageswara Velinedi and Sridevi Kota. Both Motions are **granted** as set forth herein.

Background

This case was filed on December 13, 2024, concerning Plaintiffs' allegations of Wrongful Foreclosure. On or about July 23, 2023, Defendants propounded Requests for Admissions and Requests for Admissions of Genuineness of Documents on both Plaintiffs. As of the date of these Motions were filed, Plaintiff has timely not responded to Defendants' requests. Subsequent to the filing of these Motions, on December 18, 2025, over a year after the initial requests were served, both Plaintiffs served responses.

There are two motions which are scheduled for hearing on January 28, 2026:

1. Defendants Capital Benefit, Inc.; Provident Trust Group FBO George S. Simmons Rollover IRA #3900656 and Lawrence E. Elkins And Norma J. Elkins, Trustees And Lawrence C. Henig, Trustee; Total Lender Solutions, Inc. (collectively "Defendants") motion for an order that the truth of all specified matters in Defendants Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants' Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi ("Velinedi") on July 23, 2025, be deemed admitted.

Defendants seeks to obtain an order that (1) the truth of all specified matters in Defendant's Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants' Requests for Admission of the Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi ("Velinedi") on July 23, 2025, be deemed admitted, (2) Sanctions in the amount of \$860.00 jointly and severally against Plaintiff and Plaintiff's Counsel, and (3) any other relief that the Court shall deem proper and just.

2. Defendants second motion is for an order that the truth of all specified matters in Defendant's Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants' Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Sridevi Kota ("Kota") on July 23, 2025, be deemed admitted.

By this motion, Defendants seek to obtain the following order: (1) that the truth of all specified matters in Defendants' Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants' Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Kota on July 23, 2025, be deemed admitted, (2) sanctions in the amount of \$860.00 jointly and severally against Plaintiff and Plaintiff's Counsel, and (3) any other relief that the Court shall grant.

Both Motions are supported by Memorandum of Points and Authorities, Notices, Declaration of Counsel.

Plaintiffs filed timely opposition, supported by each Plaintiff's declaration. The oppositions do not contain a viable factual explanations for failing to comply with the Discovery Act. The oppositions are devoid of legal authority that supports any good faith argument providing any substantial justification for Plaintiffs' failure to prepare timely responses. Essentially, both Plaintiffs claim, in identical responses, that: "Plaintiff did not fully understand nor was it explained to him by his prior counsel that he was to provide written responses to the form and special interrogatories, request for admissions and request for production of documents propounded by Defendants ("Subject Discovery") which are the subject of the herein motion."

Analyses

Requests for Admissions may be used to (1) establish the truth of specified facts, (2) admit a legal conclusion, (3) determine a party's opinion relating to a fact, (4) settle a matter in controversy, and (5) admit the genuineness of documents. C.C.P. §2033.010; Weil and Brown, Cl. Prac. Guide: Civil Procedure Before Trial (TRG 2025) ¶¶8:1288 - 8:1301.2.

Admissions in response to RFA's are treated in effect as stipulations to the truthfulness of the matters admitted. No other evidence is necessary to establish the point and no contrary evidence is admissible without leave of court to withdraw or amend the response. Weil and Brown, Cal. Prac. Guide: Civil Procedure Before Trial (TRG 2025) ¶8:1388, citing C.C.P. §2033.300-410); C.C.P. § 2033.410(a); *Murillo v. Sup.Ct. (People)* (2006) 143 Cal.App.4th 730, 736.

Neither Plaintiff served responses to the basic questions contained in the requests for admission. Code Civ. Proc. § 2033.280 subd. (b) provides the following:

The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

"To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person or attorney, and after opportunity for hearing may impose ... sanctions against anyone engaging in conduct that is a misuse of the discovery process..." Code Civ. Proc. § 2023.030.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to

compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Further, sanctions are mandatory under the controlling statute.

After reviewing the papers submitted by counsel, and applying the foregoing statutory and decisional authorities, the Court finds good cause to grant both Motions and Sanctions.

Ruling

The Court grants the following Motions:

1. Defendants Capital Benefit, Inc.; Provident Trust Group FBO George S. Simmons Rollover IRA #3900656 and Lawrence E. Elkins And Norma J. Elkins, Trustees And Lawrence C. Henig, Trustee; Total Lender Solutions, Inc. (collectively “Defendants”) motion for an order that the truth of all specified matters in Defendants Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi (“Velinedi”) on July 23, 2025, is **granted** and each of the foregoing requests are deemed admitted.

The Court grants and issues this order that (1) the truth of all specified matters in Defendant’s Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of the Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi (“Velinedi”) on July 23, 2025, are deemed admitted, (2) Sanctions in the amount of \$860.00 jointly and severally against Plaintiffs **but not against Plaintiff’s** current Counsel, and (4) Sanctions shall be paid no later than ten (10) days from the date of this Order.

2. Defendants second motion is for an order that the truth of all specified matters in Defendant’s Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Sridevi Kota (“Kota”) on July 23, 2025, is **granted** and each of the foregoing requests are deemed admitted.

The Court grants and issues this order: (1) that the truth of all specified matters in Defendants’ Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Kota on July 23, 2025, are deemed admitted, (2) Sanctions in the amount of \$860.00 jointly and severally against Plaintiffs **but not against** Plaintiff’s current Counsel, and (3) Sanctions shall be paid no later than ten (10) days from the date of this Order.

3. Defendants’ counsel shall prepare and efile a proposed order conforming to the foregoing and shall attach a copy of this tentative ruling to the proposed order.